

		As the Court of Appeal has explained: "Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (<i>Angie M. v. Superior Court</i> (1995) 37 Cal.App.4th 1217, 1227.) Here, while Cross-Complainants have not explained how they might amend the Cross-Complaint to state viable causes of action, the motion to strike was asserted against the original Cross-Complaint. Thus, Cross-Complainants have not had an opportunity to amend the Cross-Complaint in response to the challenges made by Cross-Defendant. Accordingly, the court will exercise its discretion and grant leave to amend. The parties are reminded that, when leave to amend is granted upon the sustaining of a demurrer or the granting of a motion to strike, amendments are limited to the issues addressed in the court's ruling and generally may not include amendments to causes of action not addressed in the ruling or the addition of new causes of action. (<i>See Community Water Coalition v. Santa Cruz County Local Agency Formation Com.</i> (2011) 200 Cal.App.4th 1317, 1329 ["It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all."].) Cross-Defendant shall give notice of these rulings.
8	Ramirez vs. City of Santa Ana 30-2022-01287702	<u>Motion for Attorney's Fees</u> Defendant City of Santa Ana's Motion for Attorney's Fees in the Amount of \$554,413.50 and Costs in the Amount of \$293,141.29 is DENIED. <u>Pending Motion</u> Defendant City of Santa moves for an award of attorney's fees in the amount of \$554,413.50 and costs in the amount of \$293,141.29.

		<u>Standard for Motion for Attorney's Fees (in General)</u> Generally, attorney's fees are borne by the party that incurred them. (See <i>Pederson v. Kennedy</i> (1982) 128 Cal.App.3d 976, 978-79). Therefore, a party may recover attorney's fees only if provided for by contract or statute. (See Code Civ. Proc., § 1033.5, subd. (a)(10); see also <i>LNSU # 1, LLC v. Alta Del Mar Coastal Collection Community Association</i> (2023) 94 Cal.App.5th 1050, 1081 ["Each party to an action must pay its own attorney fees unless a statute or contract requires the opposing party to pay them."].) The Fair Employment and Housing Act (FEHA) provides that "the court, in its discretion, may award to the prevailing party . . . reasonable attorney's fees and costs, including expert witness fees, except that . . . a prevailing defendant shall not be awarded fees and costs unless the court finds the action was frivolous, unreasonable, or groundless when brought, or the plaintiff continued to litigate after it clearly became so." (Gov. Code, § 12965, subd. (c)(6).) This has been interpreted to mean that: [A] prevailing <i>plaintiff</i> should ordinarily receive his or her costs and attorney fees unless special circumstances would render such an award unjust. A prevailing <i>defendant</i>, however, should not be awarded fees and costs unless the court finds the action was objectively without foundation when brought, or the plaintiff continued to litigate after it clearly became so. (<i>Williams v. Chino Valley Independent Fire Dist.</i> (2015) 61 Cal.4th 97, 115, italics original, citation omitted.) In order to obtain an award of attorney's fees under Section 12965 based on the frivolousness of the plaintiff's case, the defendant must show that "the plaintiff brought or continued litigating the action without an objective basis for believing it had potential merit." (<i>Lopez v. Routt</i> (2017) 17 Cal.App.5th 1006, 1011.) Furthermore, "[a]n action is not frivolous simply because the plaintiff's FEHA claim failed." (<i>Baker v.</i>
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		<i>Mulholland Security & Patrol, Inc.</i> (2012) 204 Cal.App.4th 776, 784.) As the United States Supreme Court has warned in a similar situation, "it is important that a [trial] court resist the understandable temptation to engage in post hoc reasoning by concluding that, because a plaintiff did not ultimately prevail, his action must have been unreasonable or without foundation." (<i>Cummings v. Benco Building Services</i> (1992) 11 Cal.App.4th 1383, 1388, quoting <i>Christianburg Garment Co. v. EEOC</i> (1978) 434 U.S. 412, 421-422.) Here, Defendant contends that this this action was frivolous, unreasonable, or groundless from the outset as the law was always clear that Plaintiff could not claim that she was discriminated and retaliated against due to her membership in a "camp." However, it is not clear that at the inception of this lawsuit, Plaintiff knew that she had been discriminated or retaliated against because she would not join any of the groups within the Santa Ana Police Department. Rather, what she believed was that she adverse employment action was taken against her for no legitimate reason. She also knew that other women at her workplace had complained about being treated differently on the basis of gender and that she was treated worse after she reported this gender discrimination to her employer. Further, Defendant never challenged Plaintiff's claims in the early stages of this action or prior to trial by way of a demurrer, motion for judgment on the pleadings, or motion for summary judgment. At trial, the jury unanimously found in favor of Plaintiff and awarded her over \$2 million. In granting Defendant's Motion for Judgment Notwithstanding the Verdict, the court primarily relied upon the fact that there was insufficient evidence of a causal link between the protected activity and the adverse employment action. To make this causal connection, a plaintiff would primarily look to evidence that is in the possession or the minds of the defendant and its employees.
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10	Cano vs. O'Grady 30-2024-01410607	<u>Motion for Summary Judgment and/or Summary Adjudication</u> There is not tentative ruling in this matter. The court will hear oral argument from the parties or their counsel.